GOVERNMENT OF INDIA
MINISTRY OF FINANCE
INCOME TAX DEPARTMENT
OFFICE OF THE JOINT COMMISSIONER OF INCOME TAX (APPEALS)-2
KOLKATA

Appeal No.	:	JCIT(A)-2/Kol/10999/2023-24
Name of the appellant	:	Shri Namuna Kumar Udaharan
Address	:	12, Placeholder Lane, Sample Bazar, Kolkata - 700 000 (fictitious)
PAN	:	ABCPU1234E
Assessment Year	:	2018-19
Section under which the order appealed against was passed	:	143(3) r.w.s. 144B
Order appealed against passed by	:	ITO, Ward 9(9), Kolkata, dated 24/09/2021
Appearance for the appellant	:	None
Date of order	:	07/10/2026

ORDER UNDER SECTION 250 OF THE INCOME-TAX ACT, 1961

1. This appeal is filed against the order passed u/s 143(3) r.w.s. 144B of the Income-tax Act, 1961 ('the Act') dated 24.09.2021 for A.Y. 2018-19, wherein the total income was assessed at Rs.29,15,400/- as against the returned income of Rs.21,10,000/-, and a demand of Rs.3,46,780/- was raised. The appeal was transferred to this office for disposal.

2. The appellant is an individual carrying on a trading business as the proprietor of M/s Namuna Enterprises. In the assessment, the AO made an addition of Rs.6,20,000/- u/s 69A on account of cash deposits not explained from recorded sources, and a disallowance of Rs.1,85,400/- u/s 36(1)(va) on account of employees' contribution to provident fund deposited after the due date under the relevant Act.

3. The appellant has raised the following grounds of appeal:

   (1) The AO erred in making an addition of Rs.6,20,000/- u/s 69A without appreciating that the cash deposits were out of business receipts.

   (2) The AO erred in disallowing Rs.1,85,400/- u/s 36(1)(va) though the contributions were deposited before the due date of filing the return.

4. Notices of hearing u/s 250 were issued to the appellant on 12.07.2025, 18.12.2025, 03.04.2026 and 11.08.2026 through the e-filing portal and by e-mail at the address furnished in Form 35. The appellant has neither furnished any written submission nor sought an adjournment in response to any of the notices.

5. The conduct of the appellant shows that the appellant is not interested in pursuing the appeal. The appeal is therefore decided ex parte, on the basis of the material available on record.

6. **Ground No. 1 - Addition of Rs.6,20,000/- u/s 69A**

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6.1 In the assessment order, the AO noted that the appellant deposited cash in his savings bank account and was unable to explain the source of the deposits with reference to his books of account.

6.2 In the absence of any submission or evidence from the appellant, I find no infirmity in the order of the AO. The addition of Rs.6,20,000/- u/s 69A is confirmed. Ground No. 1 is dismissed.

7. **Ground No. 2 - Disallowance of Rs.1,85,400/- u/s 36(1)(va)**

7.1 The AO held that the employees' contribution to provident fund deposited after the due date under the Employees' Provident Funds Act is income u/s 2(24)(x) and is not allowable u/s 36(1)(va).

7.2 The appellant has not placed any material to show that the contributions were deposited within the due date under the relevant Act. The disallowance of Rs.1,85,400/- is upheld. Ground No. 2 is dismissed.

8. In the result, the appeal is dismissed for non-prosecution.

Sd/-
(B. C. Specimen)
Joint Commissioner of Income Tax (Appeals)-2
Kolkata

Copy to:

1. The appellant
2. The Pr. CIT, Kolkata-9 (fictitious)
3. The ITO, Ward 9(9), Kolkata
4. Guard file

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